

UNITED STATES BANKRUPTCY COURT  
SOUTHERN DISTRICT OF FLORIDA  
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**GUIDELINES FOR CHAPTER 13 SECURED CREDITORS'  
ATTORNEYS' FEES CLAIMS UNDER FED. R. BANKR. P. 3002.1(c)**

**I. Applicability.**

- A. These guidelines apply to notices under Fed. R. Bankr. P. 3002.1(c) itemizing fees, expenses, and charges incurred after the case was filed but before confirmation of a chapter 13 plan, that the holder asserts are recoverable against the debtor or the debtor's principal residence.
- B. These guidelines do not apply to a claim holder's attorneys' fees for reviewing or objecting to a motion under 11 U.S.C. § 1329 to modify a chapter 13 plan post-confirmation.
- C. Nothing in these guidelines prohibits a claim holder from seeking under Fed. R. Bankr. P. 3002.1(c) to recover attorneys' fees against the debtor or the debtor's principal residence in an amount greater than the Safe Harbor Fees (as defined in section II).

**II. General Rule.**

Subject to section III, \$525.00 in attorneys' fees incurred by a claim holder filing a notice under Fed. R. Bankr. P. 3002.1(c) (the "Safe Harbor Fees") is presumptively reasonable for the following services in the aggregate:

- A. preparing and filing a proof of claim on behalf of the claim holder (including Official Form 410A Proof of Claim Attachment A) and any preconfirmation amendments thereto;
- B. reviewing the debtor's chapter 13 plan and all amendments thereto;
- C. general monitoring of the chapter 13 case for motions, applications, or other activity affecting the claim holder's claim before confirmation;
- D. preparing, filing, and prosecuting any objection that may be necessary to protect the claim holder's claim before confirmation.

**III. Scope of Fees.**

To be entitled to the presumptive reasonableness of the Safe Harbor Fees, the attorney for a claim holder must have:

- A. performed the services listed in section II.A.–D.;

- B. reviewed the loan's payment history;
- C. reviewed the documents attached to the proof of claim and confirmed that those documents evidence that the secured creditor has a perfected lien and that the documents provide for the recoverability of attorney's fees;
- D. verified that the proof of claim was properly docketed;
- E. communicated with the claim holder or loan servicer to obtain the information necessary to represent the claim holder's interests in the chapter 13 case; and
- F. negotiated with the debtor and the chapter 13 trustee, as necessary, to represent the claim holder's interests in the chapter 13 case.

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